



CHAPTER 31.

An Act to make further provision to prevent excessive prices being charged for goods and excessive charges being made for performing services in relation to goods (including hiring and subjecting to a process), to amend the Prices of Goods Act, 1939, and for purposes connected with the matters aforesaid.

[22nd July 1941.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Further provisions for preventing excessive prices and charges.

1.—(1) The Board of Trade may by order fix the maximum price to be charged, in the course of a business of any class specified in the order, for goods of any description so specified; and it shall be unlawful for any person in the course of any such business to sell, agree to sell or offer to sell, any such goods at a price which exceeds the maximum price fixed by the order in relation to that business.

Power to fix maximum prices for goods.

(2) Any such order may fix different maximum prices to be charged in the course of businesses of different classes for the same description of goods.

(3) Any such order fixing the maximum price to be charged for goods of any description in the course of a business which includes the selling of the goods may require such steps as may be specified in the order to be taken to bring the said price to the notice of persons to whom the goods are offered for sale in the course of the business.

(4) Any such order may, instead of specifying the maximum price to be charged in the course of a business of any class for goods of any description, direct that that price shall be computed in such manner and by reference to such matters as may be provided by the order.

(5) Where any such order contains such a direction as is mentioned in the last foregoing subsection as respects the price to be charged for any goods in the course of any business, the provisions of Part I of the First Schedule to this Act (which applies with modifications the provisions of section ten of the principal Act) shall have effect as respects the rights of a buyer of the goods under a sale or agreement effected in the course of that business in contravention of subsection (1) of this section.

(6) If any person sells, agrees to sell or offers to sell any goods in contravention of subsection (1) of this section he shall be guilty of an offence under this Act:

Provided that—

(a) where it is proved that an offer or agreement made in contravention of the said subsection has been followed by an agreement or sale so made in pursuance of that offer or agreement, those transactions together shall be taken to constitute a single offence; and

(b) it shall be a defence for a person charged with a contravention of the said subsection to prove that, in relation to the matter in respect of which he is charged, he acted in the course of his employment as a servant or agent of another person on the instructions of his employer or of some other specified person.

(7) If any of the provisions of any order made by virtue of subsection (3) of this section are not complied with as respects any business, the person carrying on the business shall be guilty of an offence under this Act and liable on summary conviction to imprisonment for a term not exceeding three months or to a fine not exceeding one hundred pounds or to both such imprisonment and such fine.

(8) As respects a sale of, or an agreement or offer to sell, any goods in the course of a business in relation to which a maximum price has been fixed for the goods by an order under this section, the provisions of subsection (1) of this section shall have effect in substitution for the provisions of section one of the principal Act.

(9) Any order in force at the commencement of this Act under subsection (1) of section five of the principal Act specifying a price representing the permitted price that may be charged in the course of a business of any class for goods of any description

shall continue in force, and have effect as if it had been made under this section and as if the price so specified were a maximum price fixed under this section.

(10) Section fourteen of the principal Act as amended by this Act (which excepts sales by auction or for export) shall apply for the purposes of this section as if references therein to that Act, and to any of the provisions thereof, included references to this section.

(11) The Board of Trade may by regulations prescribe a mark appearing to them to be suitable for indicating—

- (a) that goods to which the mark may be applied are goods of a description for which a maximum price has been fixed by an order for the time being in force under this section ;
- (b) that they are offered for sale in the course of a business in relation to which a maximum price has been so fixed ; and
- (c) that the price at which they are so offered for sale does not exceed the price so fixed ;

and the use of a mark so prescribed shall be taken for the purposes of the Merchandise Marks Act, 1887, to be a trade description within the meaning of that Act indicating those facts. 50 & 51 Vict.
c. 28.

2.—(1) The Board of Trade may by order fix the maximum charge to be made, in the course of a business of any class specified in the order, for performing, in relation to goods of any description so specified, a service of any description so specified ; and it shall be unlawful for any person in the course of any such business to perform, agree to perform, or offer to perform, any such service in relation to any such goods for a charge which exceeds the maximum charge fixed by the order in relation to that business and to those goods. Power to
fix maximum
charges for
services in
relation to
goods.

(2) Any such order may fix different maximum charges to be made in the course of businesses of different classes for the same service in relation to the same description of goods.

(3) Any such order fixing the maximum charge to be made in the course of a business of any class for performing a service may require such steps as may be specified in the order to be taken to bring the said charge to the notice of persons to whom offers are made to perform the service in the course of the business.

(4) Any such order may, instead of specifying the maximum charge to be made in the course of a business of any class for performing any service, direct that that charge shall be computed in such manner and by reference to such matters as may be provided by the order.

(5) Where any such order contains such a direction as is mentioned in the last foregoing subsection as respects the

performance of any service in the course of any business, the provisions of Part II of the First Schedule to this Act (which applies with modifications the provisions of section ten of the principal Act) shall have effect as respects the rights of a person for whom that service is performed, or with whom an agreement is made to perform the service, in the course of that business in contravention of subsection (1) of this section.

(6) If any person performs, agrees to perform, or offers to perform, any service in contravention of subsection (1) of this section, he shall be guilty of an offence under this Act :

Provided that—

- (a) where it is proved that an offer made in contravention of the said subsection has been followed by an agreement so made in pursuance of that offer, or that an agreement so made has been performed in contravention of the said subsection, those transactions together shall be taken to constitute a single offence ; and
- (b) it shall be a defence for a person charged with a contravention of the said subsection to prove that, in relation to the matter in respect of which he is charged, he acted in the course of his employment as a servant or agent of another person on the instructions of his employer or of some other specified person.

Sale of
second-hand
goods.

3.—(1) If the Board of Trade are satisfied that excessive prices are being charged for second-hand goods of any description, either generally in the United Kingdom or in a particular part thereof, the Board may by order make provision for prohibiting (subject to the provisions of the order) the sale of second-hand goods of that description in the course of a business carried on in the United Kingdom or that part thereof unless the person carrying on the business is registered in accordance with the order.

(2) Any such order shall make provision—

- (a) for enabling the Board, subject to an appeal to the referee appointed in accordance with the provisions of the Second Schedule to the principal Act, to refuse to register, or to cancel the registration of, persons who appear to the Board to have charged excessive prices for second-hand goods to which the order applies or to have engaged in or been party to any practice which appears to the Board to have been calculated to raise the prices thereof unduly ;
- (b) for the application for the purposes of any such a peal, subject to any necessary modifications, of the provisions of the said Schedule other than provisions relating to assessors.

(3) If any of the provisions of an order made under this section are contravened as respects any business, the person carrying on the business shall be guilty of an offence under this Act.

4.—(1) The Board of Trade may by order make provision, Middlemen as respects goods of any description to which the order applies, and brokers. for prohibiting, except under licence and subject to such conditions as may be specified in the licence—

- (a) the re-sale otherwise than by retail, in the course of any business which includes the selling of goods of that description, of any goods of that description which have been bought in the course of that business, not being goods imported, or bought from the manufacturer or importer thereof, in the course of that business ; and
- (b) the re-sale in the course of any such business of any goods of that description which have been bought by retail in the course of that business :

Provided that no such order shall prohibit the re-sale of goods in the course of any business at a price not exceeding the price at which they were bought in the course of that business.

(2) Where any order in force by virtue of the Emergency Powers (Defence) Acts, 1939 and 1940, provides for controlling the quantity of goods of any description that may be supplied in any period by a person registered under the order, the Board of Trade may by regulations make provision for prohibiting (subject to the provisions of the regulations) the giving or receipt of any remuneration or reward to or by any person for procuring the sale of goods of that description by a person so registered.

(3) If any of the provisions of an order made under this section, or any of the conditions specified in a licence issued under such an order, are contravened as respects any business, the person carrying on the business shall be guilty of an offence under this Act, and if any person contravenes any of the provisions of regulations made under this section, he shall be guilty of an offence under this Act.

Amendments of principal Act

5.—(1) The following subsection shall be substituted for subsection (1) of section five of the principal Act :—

Ascertainment
of basic price.

“(1) The Board of Trade may by order fix, in relation to price-regulated goods of any description and in relation to any business or businesses of any class—

- (a) the price which is to be taken for all the purposes of this Act to be the basic price ; and
- (b) the date as at which the basic price so fixed is to be taken to be ascertained for the purpose of computing the permitted increase under section four of this Act ;

and, while such an order is in force, it shall have effect, in relation to goods of the description and the business or businesses of the class to which it relates, in substitution for the foregoing provisions of this Act relating to the ascertainment of the basic price”.

(2) The Board of Trade may pay to any person appointed to act as deputy for the referee under paragraph 1 of the Second Schedule to the principal Act (which relates to appeals against orders specifying a basic price) such remuneration as the Board, with the approval of the Treasury, may determine, and such expenses of any such person as the Board and the Treasury approve shall be defrayed by the Board.

Ascertainment
of permitted
increase.

6.—(1) The Board of Trade may by order direct that the First Schedule to the principal Act (which specifies the matters to which regard is to be had in fixing the permitted increase) shall be amended by omitting or altering any of the matters specified therein or adding any other matter to the matters so specified.

(2) Any such order may contain different directions as respects different classes of business.

(3) Any such order may provide that it shall be deemed to have had effect in relation to transactions effected before the order came into operation in cases where the amount of the permitted increase at the time when the transaction was effected was less than it would have been if the order had then been in operation.

(4) No order shall be made under the foregoing provisions of this section unless a draft thereof has been approved by a resolution of each House of Parliament.

(5) Any order in force at the commencement of this Act under the said First Schedule adding any matter to the matters specified therein shall continue in force and have effect as if it had been made under this section.

Restriction of
exemption of
goods for
export.

7. For the purpose of subsection (2) of section fourteen of the principal Act (which exempts from that Act goods intended for export), goods intended for export as packing materials for, or containers of, other goods intended for export shall be treated as if they were not intended for export; and accordingly that subsection shall have effect as if—

(a) after the word “export” where it first occurs, there were inserted the words “otherwise than as packing materials for, or containers of, other goods intended for export”; and

(b) at the end of the subsection there were inserted the words “otherwise than as aforesaid”.

Supplemental.

8.—(1) Where a person (hereafter in this subsection referred to as "the offerer") offers in the course of any business to enter into a transaction for a consideration to be given as a whole both in respect of a matter to which this section applies and in respect of some other matter (whether or not being or including a matter to which this section applies), any person to whom the offer is made may require the offerer to state to him in writing—

- (a) what part of the consideration the offerer assigns to the matter to which this section applies ; or
- (b) if the matters in respect of which the consideration is to be given are or include two or more matters to which this section applies, the several parts of the consideration which the offerer assigns to any one or more of those matters.

The matters to which this section applies are the sale of any price-controlled goods and the performance of any price-controlled service.

(2) The Board of Trade or a price-regulation committee may, at any time within twenty-one days beginning with the day on which any person has offered to enter into such a transaction as aforesaid, by notice in writing require him to make to the Board or the committee, as the case may be, such a statement as aforesaid.

(3) Where, in pursuance of a requirement made under this section, a person making an offer states what part of the consideration he assigns to the sale of any price-controlled goods or to the performance of any price-controlled service, he shall be deemed, for all the purposes of this Act and the principal Act, to have offered to sell those goods, or to perform that service, for the part of the consideration so stated.

(4) If a requirement made under this section as respects an offer made in the course of any business is not complied with, the person carrying on the business shall be guilty of an offence under this Act.

9.—(1) If—

- (a) a person carrying on a business in the course of which price-controlled goods of any description are normally sold has in his possession in the course of that business a stock of goods of that description ; and
- (b) the said person, or any person employed by him to sell goods in the course of the business, when asked by any other person (hereafter in this section referred to as

Holding up
stocks.

"the buyer") to sell goods of that description or whether he or his employer has such goods for sale—

(i) refuses to sell the goods, or denies that he or his employer has the goods, or uses any words, or gives any other indication, calculated to lead the buyer to suppose that he or his employer has not got the goods or will not or can not sell them; or

(ii) offers to sell the goods subject to a condition requiring the buying of any other goods (whether price-controlled or not) or the making of any payment in respect of any service, or subject to any other condition, except a condition that the buyer shall pay the price forthwith or take delivery within a reasonable time;

the person carrying on the business shall be guilty of an offence under this Act.

(2) It shall be a defence for a person charged with any such offence to prove that the sale of the goods, or the sale thereof without the fulfilment of a condition proposed by him or a person employed by him, would, having regard to the quantity of goods which he or that person was requested to sell or any other consideration—

- (a) be contrary to the normal practice of his business; or
- (b) involve a breach of some obligation lawfully binding on him; or
- (c) interfere with arrangements made by him for an orderly disposal of his stocks amongst his regular customers.

Barter,
mortgages
and pledges.

10.—(1) It shall not be lawful for any person in the course of any business to transfer, agree to transfer, or offer to transfer to another person the property in any price-controlled goods, whether with or without any further consideration, for a consideration which consists of or includes the transfer by that other person of the property in other goods, whether price-controlled or not.

(2) For the purposes of the last foregoing subsection, references to the transfer by any person of the property in goods shall include references to the transfer of his interest in goods the property in or possession of which he has for the time being transferred to another person as security for a debt.

(3) If any of the foregoing provisions of this section are contravened as respects any business, the person carrying on the business shall be guilty of an offence under this Act.

(4) Where, in the course of any business, a person transfers, agrees to transfer, or offers to transfer to another person for

a money consideration his interest in any price-controlled goods, the property in or possession of which he has for the time being transferred to a third person as security for a debt, he shall be deemed for all the purposes of the principal Act and this Act to have sold, agreed to sell or offered to sell those goods to the second mentioned person for a price equal to the sum of the following amounts, namely—

- (a) the amount of the said money consideration ;
- (b) the amount of the said debt and any interest payable thereon ; and
- (c) the amount of any charges payable to the said third person in respect of the goods.

Enforcement.

11.—(1) The provisions of subsections (2), (4), (5) and (6) of *Price-regulation committees.* section eight of the principal Act (which relate to the powers and duties of price-regulation committees as respects the supervision of the enforcement of the provisions of that Act) shall have effect in relation to the enforcement of the foregoing provisions of this Act and any order made thereunder, and to any contravention thereof, as they have effect in relation to the enforcement of the provisions of the principal Act, and to contraventions of section one thereof.

(2) A local price-regulation committee shall keep under review—

- (a) the prices at which goods are being offered for sale in their locality ; and
- (b) the charges which are being made in their locality for performing services in relation to goods ;

and if it appears to them to be expedient—

- (i) that an order under section two of the principal Act or section one or three of this Act should be made in relation to any goods ; or
- (ii) that an order under section two of this Act should be made as respects the performance of any service in relation to any goods ;

they shall make a representation to that effect to the central price-regulation committee.

(3) The expenses of a price-regulation committee which may be paid by the Board of Trade under section eight of the principal Act shall include such expenses incurred by any person in attending before the committee under subsection (2) or subsection (5) of the said section eight as may be defrayed by the committee with the approval of the Board.

Inspectors.

12.—(1) For the purposes of enforcing the provisions of the principal Act and this Act, the Board of Trade may appoint such number of inspectors, and pay to them such remuneration and expenses, as the Board with the approval of the Treasury may determine.

(2) An inspector appointed under this section shall, for the purposes aforesaid, have power at all reasonable times, on production of a certificate of his appointment—

(a) to enter any premises occupied for the purpose of a business which he has reason to believe to include the selling of any goods or the performance in relation to any goods of any service ;

(b) to inspect any goods found on any such premises ;

(c) to require any person carrying on or employed in connection with any such business—

(i) to produce to, and allow to be examined by, him any accounts, books or other documents in the custody or under the control of the person so required, being documents relating to that business the examination of which he may reasonably require for the purposes of this Act or the principal Act ; and

(ii) to furnish to him any information as respects that business which he may reasonably require for the said purposes.

(3) If any person obstructs an inspector in the exercise of the powers conferred upon him by this section, he shall be guilty of an offence under this Act and liable on summary conviction to a fine not exceeding fifty pounds.

**Furnishing of
invoices.**

13.—(1) The Board of Trade may by order make provision for requiring that, where price-controlled goods are sold in the course of a business and bought in the course of another business, the person carrying on the first-mentioned business (hereafter in this section referred to as "the seller") shall furnish an invoice to the person carrying on the second-mentioned business (hereafter in this section referred to as "the buyer").

(2) Any such order may provide—

(a) for the application of the order either to all price-controlled goods or to price-controlled goods of such descriptions as may be prescribed, and either to all businesses or to businesses of such classes as may be prescribed ;

(b) for requiring an invoice furnished under the order to contain the prescribed particulars, being particulars which appear to the Board to be material for determining whether section one of the principal Act or subsection (1) of section one of this Act has been contravened ;

(c) for requiring the buyer—

(i) in the event of his not receiving an invoice containing the prescribed particulars, to demand such an invoice and inform the seller that he is buying in the course of a business to which the order applies ;

(ii) to give notice to the prescribed person of any failure by the seller to furnish an invoice in accordance with the order ; and

(iii) to preserve for the prescribed period any invoice furnished to him in accordance with the order.

(3) In this section the expression “ prescribed ” means prescribed by an order under this section.

(4) If any of the provisions of any order made under this section are not complied with by a person carrying on a business, he shall be guilty of an offence under this Act.

14.—(1) The Board of Trade may—

Accounts and
information.

(a) by notice in writing require any person carrying on a business which includes the selling of any price-controlled goods or second-hand goods or the performance of any price-controlled service ; or

(b) by order require all persons carrying on businesses which include the selling of any price-controlled goods or second-hand goods of a description specified in the order or the performance of any price-controlled service of a description so specified ;

to keep such books, accounts and other records in relation to the business, and in such form, and containing such particulars with respect to such matters, as may be specified in the notice or order.

(2) The Board of Trade, or a price regulation committee, may by notice in writing require any person carrying on a business which includes the selling of any goods (whether price-controlled goods or not) or the performance in relation to any goods of any service (whether a price-controlled service or not)—

(a) to produce to, and allow to be examined by, a person specified in the notice such books, accounts or other documents in the custody or under the control of the person so required as may be specified or described in the notice, being documents relating to that business the examination of which may reasonably be required for the purposes of this Act or the principal Act ; and

(b) to furnish to a person so specified such information as respects that business as may reasonably be required for the purposes of this Act or the principal Act.

15.—(1) If any person makes default—

Offences in
relation to
accounts, &c.

(a) in complying with a notice or order given or made under subsection (1) of the last foregoing section ; or

- (b) in producing or furnishing any book, account or other document or any information which he is required under this Act to produce or furnish ;

he shall be guilty of an offence under this Act and shall be liable on summary conviction to a fine not exceeding fifty pounds, and if after being so convicted he continues to make the like default, he shall be guilty of a further offence under this Act and shall be liable on summary conviction to a fine not exceeding fifty pounds for each day on which the default continues after the first mentioned conviction, or to imprisonment for a term not exceeding six months, or to both such fine and such imprisonment.

- (2) If any person—

- (a) being required under this Act to produce any book, account or other document, produces with intent to deceive any book, account or other document which he knows to be false in a material particular ; or
- (b) being required under this Act to furnish any information, or in reply to any inquiry made by or on behalf of the Board of Trade or a price-regulation committee with respect to any matter which may affect the exercise of their powers under this Act or the principal Act, makes any statement which he knows to be false in a material particular, or recklessly makes any statement which is false in a material particular ;

he shall be guilty of an offence under this Act.

General
provisions as
to offences.

16.—(1) Any person guilty of any offence under this Act for which no other penalty is expressly provided shall be liable—

- (a) on summary conviction, to imprisonment for a term not exceeding three months, or to a fine not exceeding one hundred pounds, or to both such imprisonment and such fine ; or
- (b) on conviction on indictment, to imprisonment for a term not exceeding two years, or to a fine not exceeding five hundred pounds, or to both such imprisonment and such fine.

(2) Where a person, not being a body corporate, is charged with an offence under any provision of this Act which expressly provides that the person carrying on a business shall be guilty of an offence under this Act, it shall be a defence for him to prove that the act or default in respect of which he is charged was committed by some other person without his consent or connivance, and that he exercised all such diligence to prevent the commission of the act or default as he ought to have exercised having regard to all the circumstances.

(3) On the third or any subsequent occasion on which a person is found guilty of an offence to which this subsection applies, the court may, on the application of the Attorney General, or on the application of the prosecutor made with the consent of the Attorney General, make such order, having effect during such period, as the court thinks fit for preventing the offender from carrying on, or being concerned directly or indirectly in the carrying on of, the business in the course of which the transaction constituting the offence was effected, or any branch of that business, or any business or branch of a business of a similar character; and any person contravening an order made under this subsection shall be guilty of an offence and shall be liable—

- (a) on summary conviction, to imprisonment for a term not exceeding three months; or
- (b) on conviction on indictment, to penal servitude for a term not less than three years and not exceeding five years.

(4) Where a person convicted on indictment of any offence to which this subsection applies is a body corporate, no provision in this Act or the principal Act limiting the amount of the fine which may be imposed shall apply to the body corporate and the body corporate shall be liable to such fine as the court thinks just.

(5) Section eighteen of the principal Act (which relates to offences by corporations) shall have effect as if references to a contravention of any of the provisions of that Act included references to a contravention of or failure to comply with any of the provisions of this Act or any order or regulations made thereunder.

(6) Subsections (3) and (4) of this section apply to the following offences, namely—

- (a) any offence under subsection (1) of section seven of the principal Act, whether committed before or after the commencement of this Act; and
- (b) any offence under this Act.

Miscellaneous and General.

17.—(1) No order shall be made by the Board of Trade under any provision of this Act, or under section five of the principal Act as amended by this Act, except after consultation with the central price-regulation committee. Provisions as to orders.

(2) An order made under any provision of this Act, other than an order amending the First Schedule to the principal Act, shall be laid before Parliament as soon as may be after it is made, and if either House of Parliament, within the period of forty days beginning with the day on which the order is laid before it,

resolves that the order be annulled, it shall thereupon become void, without prejudice, however, to the validity of anything previously done thereunder or to the making of a new order.

(3) In reckoning any such period of forty days as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued, or during which both Houses are adjourned for more than four days.

(4) The definition in an order for any of the purposes of this Act of a class of business may be framed by reference to any circumstances whatsoever.

Application of
provisions of
principal Act.

18. The provisions of the principal Act set out in the first column of the Second Schedule to this Act shall apply for the purposes of this Act subject to the modifications respectively specified in the second column of that Schedule.

Expenses.

19. There shall be defrayed out of moneys provided by Parliament any expenses incurred by the Board of Trade under this Act and any increase in the expenses of the Board under the principal Act which is attributable to the passing of this Act.

Interpretation.

20.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say—

“business”, unless the context otherwise requires, includes a branch of a business;

“performance of a price-controlled service”, in relation to any business, means the performance in relation to goods of any description of a service for the performance of which, in the course of that business and in relation to those goods, a maximum charge has been fixed by an order for the time being in force under this Act;

“price-controlled goods”, in relation to any business, means—

(a) price-regulated goods of any description; and

(b) goods of a description for which a maximum price has been fixed in relation to that business by an order for the time being in force under this Act;

2 & 3 Geo. 6.
c. 118.

“the principal Act” means the Prices of Goods Act, 1939.

(2) References in this Act to the performance of a service in relation to goods include references to the hiring of goods and the subjecting of goods to any process.

(3) References in this Act to a business that includes the selling of goods or goods of any particular description, or the performance of a service, or a service of any particular description, in relation to goods, include references to a business which

consists wholly of the selling of goods or goods of that description . . . or of performing a service, or a service of that description, in relation to goods.

(4) In this Act and the principal Act, references to an offer to sell goods include references to a notification by a person—

(a) of the price proposed by him for a sale of goods, whether made by the publication of a price list, by exposing the goods for sale in association with a mark indicating price, by the furnishing of a quotation or otherwise howsoever; or

(b) of the price proposed by him for goods which he has sold or agreed to sell in such circumstances that the buyer is liable to pay a reasonable price therefor, whether made by furnishing an account or otherwise howsoever,

and references in this Act to an offer to perform a service or to enter into a transaction shall be construed similarly as including a reference to a notification of the consideration proposed for the service or transaction, whether made before or after the performance of the service or the carrying out of the transaction.

(5) References in this Act to a person carrying on a business include references to a person employed to manage a business by the person carrying it on.

21. For the purposes of the application of this Act to Scotland— Application to Scotland.

(a) references to subsection (5) and subsection (6) of section eight of the principal Act shall be construed as references to the subsections respectively substituted therefor by section twenty-one of that Act; and

(b) subsection (3) of section sixteen of this Act shall have effect as if for any reference to an application by or with the consent of the Attorney General there were substituted a reference to an application by or on behalf of the Lord Advocate.

22.—(1) For the purposes of the application of this Act to Application to Northern Ireland.
Northern Ireland, references to the Attorney General and to summary conviction shall be construed in like manner as in the principal Act.

(2) For the purposes of section six of the Government of 10 & 11 Geo. 5.
c. 67.
Ireland Act, 1920, this Act shall be deemed to be an Act passed before the appointed day.

23.—(1) This Act may be cited as the Goods and Services Short title,
(Price Control) Act, 1941, and shall be construed as one with construction,
the principal Act, and this Act and that Act may be cited together repeal and
duration.
as the Goods and Services (Price Control) Acts, 1939 and 1941.

(2) The provisions of the principal Act set out in the first column of the Third Schedule to this Act are hereby repealed to the extent specified in the second column of that Schedule:

Provided that nothing in this subsection shall—

- (a) affect any order made before the commencement of this Act under subsection (2) of section seven of the principal Act ; or
 - (b) affect the operation of section nine of the principal Act in relation to any offence committed before the commencement of this Act.
- (3) This Act shall continue in force so long as the principal Act continues in force.

SCHEDULES.

FIRST SCHEDULE.

Sections 1, 2,
6.

APPLICATION OF SECTION TEN OF PRINCIPAL ACT.

PART I.

Sale of maximum price goods.

1. The following provisions of this Part of this Schedule shall have effect where an order is made by virtue of subsection (4) of section one of this Act directing that the maximum price to be charged in the course of a business of any class for goods of any description shall be computed in such manner and by reference to such matters as may be provided by the order.

2. Where a prosecution has been instituted in respect of a sale of, or an agreement or offer to sell, any goods to which any such direction relates in the course of a business to which any such direction relates at a particular price, and the person charged has been found guilty, then—

- (a) if the prosecution was in respect of a sale or agreement, the buyer under that sale or agreement ; and
- (b) whether the prosecution was in respect of a sale or agreement or of an offer, the buyer under any sale of similar goods, or under any agreement to sell similar goods, effected at the same or a higher price in the course of that business in contravention of subsection (1) of section one of this Act before the date of the finding ;

shall have the following rights, exercisable subject as hereinafter provided at his option.

3. He shall have the right to treat the sale or agreement as avoided, and to recover from the seller, as money received by the seller for his use, any amount paid by him as consideration therefor :

Provided that he shall not be entitled to exercise the right conferred by this paragraph if any rights acquired by a third party would be prejudiced by his so doing, or after the lapse of an unreasonable time from the date of the sale or agreement, or, in the case of a sale, unless he tenders the goods to the seller in substantially the same state as that in which they were when the property passed to him.

1ST SCH.
—cont.

4. He shall have the right to affirm the sale or agreement, but to recover as aforesaid to the extent of any loss sustained by him by reason of the contravention, regard being had to any consideration received or to be received by him for a re-sale of, or an agreement to re-sell, the goods.

5. Any sum recoverable by virtue of this Part of this Schedule shall be recoverable with interest thereon at the rate of five per cent. per annum from the date when it was paid.

6. The rights conferred by this Part of this Schedule shall not be exercisable by a person who is himself liable to punishment by reason of his having aided, abetted, counselled or procured the contravention in question.

PART II.

Performance of price-controlled services.

1. The following provisions of this Part of this Schedule shall have effect where an order is made under section two of this Act directing that the maximum charge to be made in the course of a business of any class for the performance of a service of any description in relation to goods of any description shall be computed in such manner, and by reference to such matters as may be provided by the order.

2. Where a prosecution has been instituted in respect of the performance of, or an agreement or offer to perform, any service of a description to which any such direction relates in the course of a business to which any such direction relates for a particular sum, and the person charged has been found guilty, then—

(a) if the prosecution was in respect of the performance of, or an agreement to perform, a service, the person for whom the service was performed or with whom the agreement was made; and

(b) whether the prosecution was in respect of the performance of a service or an agreement or offer to perform a service, any person for whom a similar service was performed, or any person with whom an agreement was made to perform a similar service, for the same or a higher charge in the course of that business in contravention of subsection (1) of section two of this Act before the date of the finding;

shall have the following rights, exercisable, subject as hereinafter provided at his option.

3. In the case of an agreement to perform a service no part of which has been performed, he shall have the right to treat the agreement as avoided, and to recover from the person who agreed to perform the service, as money received by that person for his use, any amount paid by him as consideration therefor:

Provided that he shall not be entitled to exercise the right conferred by this paragraph if any rights acquired by a third party would be prejudiced by his so doing, or after the lapse of an unreasonable time from the date of the agreement.

4. He shall in any case have the right to affirm the performance of the service or the agreement to perform it, but to recover as aforesaid to the extent of any loss sustained by him by reason of the contravention.

1ST SCH.
—cont.

5. Any sum recoverable by virtue of this Part of this Schedule shall be recoverable with interest thereon at the rate of five per cent. per annum from the date when it was paid.

6. The rights conferred by this Part of this Schedule shall not be exercisable by a person who is himself liable to punishment by reason of his having aided, abetted, counselled or procured the contravention in question.

SECOND SCHEDULE.

Section 18.

APPLICATION OF MISCELLANEOUS PROVISIONS OF PRINCIPAL ACT.

Provision of principal Act.	Subject Matter	Modifications.
Section fifteen	Saving for rights of innocent parties.	References to the principal Act shall be construed as including references to this Act and any order or regulation made thereunder.
Section seventeen	Restriction on disclosure of information.	References to the principal Act shall be construed as including references to this Act.
Subsections (1), (2), (3) and (5) of section nineteen.	Powers of Board of Trade for purposes of Act.	References to the principal Act shall be construed as including references to this Act, and in subsections (1) and (3) references to an order shall be construed as including references to a regulation.

Section 23.

THIRD SCHEDULE.

PROVISIONS OF PRINCIPAL ACT REPEALED.

<i>Provision.</i>	<i>Extent of Repeal.</i>
Section five ...	Subsection (6).
Section six ...	The whole section.
Section seven ...	Subsection (2).
Section eight ...	Subsections (3) and (7).
Section nine ...	The words from " or to prove that " to the end of the section.
Section eleven ...	The whole section.
Section twelve ...	The whole section.
Section thirteen ...	The whole section.
Section sixteen ...	Subsections (1) and (2).
Section nineteen ...	In the proviso to subsection (2) the words " or under section six "; and subsection (4).
Section twenty ...	The whole section.
Section twenty-one ...	Paragraph (a).
The First Schedule ...	The words " Any other matter specified in an order made by the Board of Trade under this Schedule ".
The Second Schedule ...	In sub-paragraph (1) of paragraph 1, the words " or six ".

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